

General Conditions

These General Conditions of Online Sale (the “**General Conditions**” or “**Terms**”) exclusively govern the remote sale, by electronic means, of the Jewels offered for sale on the website www.fosjewels.com (the “**Website**”), as duly displayed and described therein (the “**Jewels**”).

The General Conditions published on the Website and in force at the time the customer submits the order proposal (the “**Order Proposal**”) shall apply to and govern each contract for the purchase of Jewels concluded between the seller of the Jewels and Website operator (as the term is defined herein below) and the customer.

Before submitting the Order Proposal, the customer is required to carefully read the General Conditions and is given the opportunity to store and reproduce them in accordance with applicable law. Submission of the Order Proposal constitutes the customer’s declaration that they have read, understood, and expressly accepted these General Conditions in their entirety, as well as all information provided prior to the conclusion of the contract, including the essential characteristics of the Jewels, pricing, and applicable terms of sale.

1. PARTIES

- 1.1. The seller of the Jewels (hereinafter referred to as the “**Seller**” or “**Us**”, or “**We**”) is P.V. LUMINUS LTD which operates under the trade name ΚΟΣΜΗΜΑΤΑ ΦΩΣ (FOS JEWELLERY), with registered office at Thiseos 2, Nisou, PC. 2571, Nicosia Cyprus, Store address: Dimitriou Hamatsou 76, Idalion, PC 2540, Nicosia, Cyprus and email address: contact@fosjewels.com, VAT number 60250610G.
- 1.2. In these General Terms and Conditions, the term “**customer**” refers to any natural or legal person who purchases Jewels through the Website. The customer is considered a party to the agreement concluded with Us under these Terms.
- 1.3. These General Conditions govern exclusively the purchase of Jewels offered for sale on the Website and do not regulate the sale of Jewels or the provision of services by third parties that may be accessible on the Website through links, banners, or other hypertext links. The Seller shall not be held liable for the supply of goods or services by such third parties, nor for the content, accuracy, or legality of their respective websites.
- 1.4. The customer shall be identified exclusively based on the information provided in the Order Proposal. The customer undertakes to provide complete, accurate, and truthful data and agrees not to provide false, inaccurate, or fictitious information. The Seller shall not be liable for any damages, delays, or issues arising from the provision of incorrect or incomplete data by the Customer.
- 1.5. The Jewels offered on the Website are intended exclusively for natural people who have reached the age of majority and possess the legal capacity to enter into binding contracts in accordance with applicable law. By submitting an Order Proposal through the Website, the customer is deemed to declare and warrant that they are at least eighteen (18) years of age and legally capable of entering a binding contractual relationship.

2. CONTRACT CONCLUSION METHOD

- 2.1. Upon submission of the Order Proposal, the customer shall receive an automated email confirming receipt thereof (the “**Order Proposal Confirmation Receipt**”). Such confirmation shall be of a purely informative nature and shall not constitute acceptance of the Order Proposal by the Seller.
- 2.2. The Order Proposal shall be deemed accepted, and the contract of sale concluded, only when the customer receives a subsequent email expressly confirming acceptance of the Order Proposal and shipment of the Jewels (the “**Order and Shipping Confirmation**”).
- 2.3. Prior to submitting the Order Proposal, the customer shall be required to confirm that they have read and expressly accepted these General Conditions, including any clauses that may limit the Seller’s liability, govern the right to withdrawal, or determine jurisdiction, in accordance with applicable law.
- 2.4. Upon completion of the Contract, the customer receives an Order and Shipping Confirmation by email. This email includes a summary of the Order as well as the General Conditions accepted by the customer, provided on a durable medium in accordance with applicable European Union legislation and the applicable law.
- 2.5. The Seller reserves the right, prior to sending the Order and Shipping Confirmation, to request additional information from the customer by email or telephone, where reasonably necessary to process the Order Proposal.
- 2.6. The Seller reserves the right not to accept or process Order Proposals that do not provide sufficient guarantees of solvency or that are incomplete or incorrect. In such cases, the Seller shall inform the customer by email, no later than thirty (30) working days from the date of submission of the Order Proposal, of the reasons why the Contract cannot be concluded. Any amounts authorized or placed on hold on the customer’s chosen payment method shall be released accordingly.
- 2.7. The Seller undertakes to deliver the ordered Jewels without undue delay and, in any event, no later than thirty (30) days from the Contract Conclusion Date.
- 2.8. The Seller reserves the right to refuse Order Proposals from customers with whom a dispute or litigation relating to a previous order is pending or has previously arisen, as well as in cases where the Seller reasonably deems the customer unsuitable, including, by way of example, previous breaches of these General Conditions or involvement in fraudulent activities.
- 2.9. While the Seller adopts all reasonable technical measures to ensure that the photographs and descriptions of the Jewels displayed on the Website accurately represent the Jewels offered for sale, minor discrepancies may occur due to technical limitations, including differences in device display settings and color resolution. Product images are therefore for illustrative purposes only.

3. SELLING PRICES

- 3.1. The prices of the Jewels (the “**Prices**”) and the applicable shipping costs (the “**Shipping Costs**”) are those indicated on the Website at the time the Order Proposal is submitted.

- 3.2. Unless otherwise expressly stated in the Order Proposal, all Prices and Shipping Costs are inclusive of applicable taxes, duties, and fees, including value added tax (VAT), and do not include any additional customs duties or charges that may apply depending on the destination of delivery.

4. PAYMENT METHOD

- 4.1. Payment for Jewels is made electronically by credit or debit card.
- 4.2. Most major credit and debit cards are accepted. No additional fees shall be charged for payments made by credit or debit card, unless expressly indicated. By using a credit or debit card, the customer is deemed to declare and warrant that they are the lawful cardholders and authorized to use the selected payment method.
- 4.3. At the time the Order Proposal is submitted, an authorization of the payment amount is applied. If the payment cannot be successfully debited, the Order Proposal shall be automatically cancelled.
- 4.4. The Seller does not have access to full credit or debit card details, which are securely managed by the third-party payment service provider (STRIPE). The Seller may retain only partial card information voluntarily saved by the customer (e.g., card type, expiration date, cardholder name) solely to facilitate future purchases. Such partial information is insufficient to identify the full card number. Accordingly, the Seller shall not be liable for any fraudulent use of the customer's payment card by third parties.

5. DELIVERY AND SHIPPING

- 5.1. Each shipment shall contain: (i) the Jewels ordered; (ii) any documentation required under the applicable law; and (iii) information and advertising material.
- 5.2. The purchase invoice relating to the Order will be provided via email with the acceptance of the order.
- 5.3. The Jewels shall be delivered by a carrier, either by post via Cyprus Post or courier, selected by the customer from among the carriers appointed by the Seller. The applicable shipping costs are indicated on the Website in accordance with the selected carrier.
- 5.4. Delivery to Cyprus may take up to 15 days from the date the customer receives the Order and Shipping Confirmation, while delivery to Greece may take up to 20 days, depending on the delivery method chosen by the customer. The Seller is not responsible for delays due to Force Majeure.
- 5.5. Force Majeure: Neither party shall be liable for any failure or delay in performing its obligations under this Agreement if such failure or delay is due to an event, circumstance, or obstacle beyond its reasonable control, including but not limited to acts of God, natural disasters, war, terrorism, government actions, strikes, pandemics, or other unforeseeable circumstances. If the failure or delay results from the non-performance of a third party engaged by the affected party to perform all or part of the obligations, the affected party shall be excused from liability only to the extent that the

third party's non-performance meets the same criteria. The affected party shall notify the other party as soon as reasonably practicable of the occurrence of such event and its expected impact on performance. The obligations affected by such event shall be suspended for the duration of the event.

- 5.6. Upon arrival of the Jewels at the designated address or collection point, the customer shall receive a notification (by email or SMS) containing the relevant collection or delivery instructions. The customer shall collect or receive the Jewels in accordance with the procedures established by the operator managing the collection service, personally or through a duly authorized representative, and within the time period designated by the carrier.
- 5.7. Failure to collect the Jewels within the above timeframe, as well as any failed delivery to the address selected by the customer, shall result in cancellation of the Order and reimbursement of amounts paid via the original payment method. Any payments made for customized Jewels and shipping costs shall not be refundable.
- 5.8. Upon delivery or collection, the customer shall immediately inspect the Jewels for visible damage or defects. Any visible damage or defects must be reported to the Seller immediately, and in any case no later than 24 hours after receiving the Jewels. Failure to report defects at the time of delivery or collection shall result in the forfeiture of the right to make claims regarding such defects. The legal warranty for defective Jewels, as set forth in Clause 8, shall remain fully applicable.
- 5.9. Currently, the Website is accessible for placing orders from Cyprus and Greece only.
- 5.10. Where the Seller has failed to deliver the goods at the time agreed with the customer, the customer shall require the Seller to make the delivery within an additional period appropriate to the circumstances. If the Seller fails to deliver the goods within the additional period, the customer shall be entitled to terminate the contract. Upon termination of the contract, the Seller shall, without undue delay, return all payments made under the contract. If the customer is a consumer (meaning a natural person acting for purposes outside their trade, business, or profession, as defined by applicable law), the consumer shall retain all other rights available to them under the law.
- 5.11. In contracts where the Seller ships goods to the consumer, the risk of loss or damage to the goods passes to the customer when the customer, or a third party designated by him/her (other than the Seller's carrier), takes physical possession of the goods; however, if the consumer instructs the use of a specific carrier and the Seller did not offer this choice, the risk passes to the customer upon delivery of the goods to that carrier. This is without prejudice to the consumer's rights against the carrier under applicable law.

6. RIGHT TO WITHDRAWAL

- 6.1. The customer has the right to withdraw from the purchase contract, without penalty and without giving any reason, within 14 days. The withdrawal period expires 14 days from the day on which the customer or a third party designated by the customer (other than the carrier) takes physical possession of the Jewels.

- 6.2. The right to withdrawal may be exercised for all or part of the Jewels included in an Order. Jewels from the same Order may be returned in multiple shipments, provided all returns are made within 14 days from the withdrawal notice.
- 6.3. To exercise the right of withdrawal, the customer must notify the Seller of their decision to withdraw within the 14-day withdrawal period by submitting an explicit declaration of withdrawal (for example, by completing the Withdrawal Form). The declaration may be sent by registered mail or courier to the following address: Dimitriou Hamatsou 76, Idalion, PC 2540, Nicosia, Cyprus, or by email to contact@fosjewels.com. Following notification of the withdrawal, the customer shall have a further 14 days to return the Jewels to the Seller
- 6.4. The Jewels may be returned by:
- Shipment by mail to the Seller's address: Dimitriou Hamatsou 76, Idalion, PC 2540, Nicosia, Cyprus
 - delivery to an appointed collection point (if available)
 - shipment through a carrier selected by the customer to the Seller's address: Dimitriou Hamatsou 76, Idalion, PC 2540, Nicosia, Cyprus
 - shipment through a carrier appointed by the Seller (if available)
- 6.5. Returned Jewels must:
- be in unused and undamaged, and clean.
 - be returned to their original condition, complete with packaging;
 - be returned in full (no partial return of components or sets).
- 6.6. Once the Seller receives the returned Jewels, a verification of the returned items will be conducted. The Seller will then notify the customer and refund all payments received for the returned Jewels within fourteen (14) days from the date the Jewels are received.
- 6.7. A return will not be accepted if the Product does not comply with the return conditions set out in these Terms. In such case, the Seller shall notify the customer of the non-acceptance of the return, stating the relevant reasons, within ten (10) days from receipt of the Jewels.
- 6.8. Within ten (10) days from receipt of such notice, the customer may request that the Jewels be returned at their own expense. Failing such request within the above term, the Seller may retain the Jewels as well as the amount paid for their purchase, without prejudice to the customer's mandatory rights under applicable consumer protection law, provided that the Customer is a consumer.
- 6.9. Refunds, where the customer is entitled to refund, will be made using the same payment method used for the purchase. If payment was made by cash on delivery, the refund will be issued by bank transfer. The customer shall be required to provide bank account information for this purpose.
- 6.10. Shipping costs related to the choice of a delivery method other than standard mail will not be refunded. Additional costs chosen by the customer (such as express shipping, cash on delivery, or gift wrapping – if available) will not be refunded. Return shipping costs are borne by the customer, unless otherwise stated.

- 6.11. The right to withdrawal does not apply to: customized or personalized Jewels; and earrings supplied in sealed packaging which has been opened after delivery, for health protection and/or hygiene reasons.

7. LEGAL WARRANTY FOR NON-COMPLIANT JEWELS

- 7.1. The Jewels sold through the Website are subject to the statutory two (2) year warranty under applicable consumer protection law, which applies when the customer is acting as a consumer. The Seller will consider any lack of conformity of the Jewels, as defined by law, existing at the time of delivery and reported by the Consumer.
- 7.2. The legal warranty applies provided that: the lack of conformity appears within two (2) years from delivery of the Jewels; and the customer can provide proof of purchase (purchase invoice or equivalent proof;). If a lack of conformity is confirmed, the customer shall be entitled, at no additional cost, to the remedies provided by applicable law, including a refund of the price paid for the non-compliant Jewels or replacement with the same or similar Jewels, subject to availability.
- 7.3. All costs related to the return of Jewels recognized as defective or non-compliant shall be borne by the Seller.

8. NATURAL CHARACTERISTICS OF SILVER JEWELRY

- 8.1. Silver jewelry may naturally oxidize, tarnish, or change color over time due to exposure to air, humidity, skin pH, cosmetics, perfumes, detergents, or normal wear. Such changes are considered normal characteristics of the material and do not constitute a lack of conformity or a defect, provided that the Product was compliant at the time of delivery and that such changes are not attributable to a manufacturing defect.

9. CONTACTS

- 9.1. When the customer sends emails, text messages (SMS), or any other communications via mobile or computer devices (including, by way of example, chat functions), such communications are deemed to be made in electronic written form.
- 9.2. The customer acknowledges that the Seller may communicate with the customer through various electronic means, including email, text messages (SMS), or by posting notices and communications on the Website, where permitted by applicable law.

10. PRIVACY

- 10.1. The Seller shall process the customer's personal data in compliance with the General Data Protection Regulation (EU) 2016/679 (GDPR) and any applicable national legislation concerning the protection of natural persons regarding the processing of personal data.
- 10.2. The Seller shall not use any content, other than personal data, provided or created by the customer in the course of using the digital content or digital service supplied by the Seller, except where such content has no utility outside the context of the relevant digital content or digital service, relates solely to the customer's activity in the course of such use, has been aggregated with other data and cannot be disaggregated or can be disaggregated only with disproportionate effort, or has been generated jointly with other persons who may continue to use it; and, except in cases where the content has no utility outside the relevant context, relates solely to the customer's activity, or has

been aggregated as described above, the Seller shall, upon the consumer's request, make such content available to the customer.

- 10.3. Customers shall familiarize themselves with the Privacy Policy published on the Website to obtain all information on how their personal data is processed.

11. GOVERNING LAW AND JURISDICTION

- 11.1. These General Conditions and any contract concluded pursuant thereto shall be governed by and construed in accordance with the laws of Cyprus, without prejudice to the mandatory provisions of the law of the country of the customer's habitual residence, in accordance with Regulation (EC) No 593/2008 (Rome I).
- 11.2. Any dispute arising out of or in connection with these General Conditions and/or any contract concluded thereunder shall be subject to the jurisdiction of the competent courts of the Republic of Cyprus, without prejudice to the rights of consumers under Regulation (EU) No 1215/2012 (Brussels I bis). Where the customer qualifies as a consumer under applicable European Union legislation, the customer may bring proceedings before the courts of the Member State in which he or she is domiciled.
- 11.3. In the event of a dispute with a customer being a consumer that cannot be resolved through the Seller's internal complaint handling procedure, the consumer may submit the unresolved dispute to the **Cyprus Consumer Centre for Alternative Dispute Resolution (CC-ADR)** at info@cc-adr.cy. Participation in the ADR procedure is voluntary, and We are willing to cooperate with the CC-ADR to facilitate the resolution of disputes with our consumers.

12. MODIFICATIONS AND UPDATES

- 12.1. These Online Conditions may be changed at any time. The customer will be required to accept the Online Conditions in force at the time of purchase. The new versions of the Online Conditions will be effective from the date of publication on the Website and in relation to Orders submitted after that date. It is possible to verify any previous versions of the Online Conditions in the appropriate section of the Website.

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